

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
ERIC WOODRUFF,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER KELVIN PERALTA, Shield No. 6980, POLICE OFFICER JEAN FIORELLO, Shield No. 17886, SERGEANT DANDREA and POLICE OFFICERS JOHN DOES# 1-10 (names and number of whom are unknown at present), and other unidentified members of the New York City Police Department,

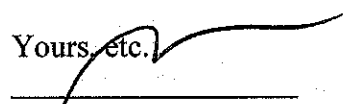
Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of IncidentPlaintiff designates Kings
County as the place of trial.**To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 9, 2015Yours, etc. JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
POLICE OFFICER KELVIN PERALTA, Shield No. 6980, 75th Precinct, 1000 Sutter
Avenue, Brooklyn, NY 11208
POLICE OFFICER JEAN FIORELLO, Shield No. 17886, 75th Precinct, 1000 Sutter
Avenue, Brooklyn, NY 11208
SERGEANT DANDREA, 75th Precinct, 1000 Sutter Avenue, Brooklyn, NY 11208

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Defendants.
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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, ERIC WOODRUFF, by his attorneys, Jacobs & Hazan, LLP, as and for his Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On November 11, 2013, at approximately 6:00 p.m., plaintiff, ERIC WOODRUFF, while sitting inside his lawfully parked motor vehicle in the vicinity of Belmont Avenue and Berriman Street, Brooklyn, New York, was unlawfully stopped, questioned, frisked, and subjected to an assault, battery, and use of excessive force by the defendant New York City police officers. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully assaulted, battered, and used excessive force against plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff ERIC WOODRUFF is a resident of the State of New York.

3. POLICE OFFICER KELVIN PERALTA, Shield No. 6980, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER KELVIN PERALTA, Shield No. 6980, is and was at all times relevant herein, assigned to the 75th precinct.

5. POLICE OFFICER KELVIN PERALTA, Shield No. 6980, is being sued in his individual and official capacities.

6. POLICE OFFICER JEAN FIORELLO, Shield No. 17886, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. POLICE OFFICER JEAN FIORELLO, Shield No. 17886 is and was at all times relevant herein, assigned to the 75th precinct.

8. POLICE OFFICER JEAN FIORELLO, Shield No. 17886, is being sued in his individual and official capacities.

9. SERGEANT DANDREA, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. SERGEANT DANDREA, is and was at all times relevant herein, assigned to the 75th precinct.

11. SERGEANT DANDREA, is being sued in his individual and official capacities.

12. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Police Officers John Does #1-10 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

16. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department

which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

17. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

18. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

19. The CITY OF NEW YORK held a hearing pursuant to 50-h of the general municipal law on or about September 18, 2014.

20. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

21. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

22. On November 11, 2013, at approximately 6:00 p.m., plaintiff was lawfully sitting inside of his motor vehicle that was lawfully parked in the vicinity of Belmont Street and Berriman Street, Brooklyn, New York.

23. Plaintiff had just dropped off his co-worker, Rubin Griffin, at Mr. Griffin's cousin's house in the vicinity of Belmont Street and Berriman Street because Mr. Griffin needed to check on the condition of his sick cousin.

24. Plaintiff legally parked his motor vehicle and waited for Mr. Griffin to finish checking in on his sick cousin.

25. While plaintiff was lawfully sitting in his motor vehicle, the defendant police officers approached plaintiff's motor vehicle and asked plaintiff to exit his motor vehicle without reasonable suspicion or probable cause.

26. Plaintiff complied with the defendant police officers request and began to exit his motor vehicle.

27. As plaintiff was attempting to exit his motor vehicle, without provocation or legal justification, the defendant police officers grabbed plaintiff's left arm and forcibly yanked plaintiff out of the car.

28. The defendant police officers then forcibly pulled both of plaintiff's arms behind his back and struck plaintiff in the ribs with a nightstick/asp.

29. As a result of the defendant police officers striking plaintiff in the ribs, plaintiff sustained a fractured rib.

30. Notably, at point in time did plaintiff resist arrest in any way.

31. Further, at no point in time did the defendant police officers recover any drugs, weapons, or contraband of any kind from plaintiff.

32. Nevertheless, plaintiff was handcuffed and transported to the 75th precinct.

33. Upon arrival at the 75th precinct, plaintiff was fingerprinted, photographed, and put in a holding cell.

34. On November 12, 2013, at approximately 8:00 a.m., plaintiff was transported to Brooklyn Central Booking.

35. On November 12, 2013, after approximately 30 hours in police custody, plaintiff was arraigned and released from custody.

36. As a result of the brutal assault on plaintiff by the defendant police officers, plaintiff was forced to miss one week of work.

37. After plaintiff was released from custody, plaintiff's ribs were in excruciating pain from the assault by the defendant police officers.

38. As a result, plaintiff was forced to seek medical attention at SUNY Downstate Hospital for his injured ribs.

39. While at the SUNY Downstate, X-rays were taken and confirmed that plaintiff suffered a fractured rib as a result of the assault by the defendant police officers.

40. None of the individually named defendants intervened to prevent or stop the assault and battery of plaintiff or prevent further injury to plaintiff.

41. By failing to intervene in order to stop this assault and battery, these defendants demonstrated a deliberate indifference to a substantial risk of serious harm to plaintiff.

42. The incident was extremely psychologically damaging to plaintiff. Furthermore, as a result of the incident, plaintiff suffered significant and permanent physical injuries.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

43. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. The use of excessive force by defendants in yanking plaintiff out of his motor vehicle, and striking plaintiff in the ribs with a nightstick/asp was an objectively unreasonable physical seizure of plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

45. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

Assault

46. Plaintiff repeats and realleges paragraphs 1 through 45 as if fully set forth herein.

47. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.

48. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

49. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Battery

50. Plaintiff repeats and realleges paragraphs 1 through 49 as if fully set forth herein.

51. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

52. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

53. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

Negligent Hiring, Retention, Training, and Supervision

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of correction officer duties on November 11, 2013 at the aforementioned location.

FIFTH CAUSE OF ACTION

Failure to Intervene

56. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

58. Defendants failed to intervene to prevent the unlawful conduct described herein.

59. As a result of the foregoing, plaintiff was brutally physically assaulted.

60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

61. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

Negligence

62. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 61 with the same force and effect as if more fully set forth at length herein.

63. Defendants owed a duty of care to plaintiff.

64. Defendants breached that duty of care by assaulting, battering, and using excessive force against plaintiff.

65. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

66. All of the foregoing occurred without any fault or provocation by plaintiff.

67. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

68. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. By the actions described herein, the individually named correction officer defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff Eric Woodruff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

70. As a result of the foregoing, plaintiff was deprived of liberty, was assaulted, and sustained great emotional injuries.

71. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

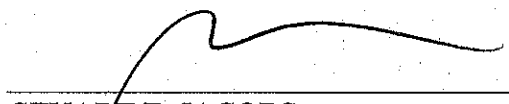
JURY DEMAND

72. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Eric Woodruff demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
February 9, 2015

By: 

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
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New York, NY 10007
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TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
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SERGEANT DANDREA, 75th Precinct, 1000 Sutter Avenue, Brooklyn, NY 11208

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
February 9, 2015



STUART E. JACOBS